



SPONSOR: Rep. K. Williams & Sen. Hansen
Reps. Gorman, Hilovsky, Morrison, Neal, Ross Levin,
Romer, Chukwuocha, Heffernan, Griffith, Harris; Sens.
Hoffner, Poore, Buckson, Pettyjohn, Richardson

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 21

AN ACT TO AMEND TITLE 16 OF THE DELAWARE CODE RELATING TO TIANEPTINE.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE (Two-thirds of all members elected to each house thereof concurring therein):

1 Section 1. Amend § 4714, Title 16 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 4714. Schedule I.

4 (h) Any material, compound, mixture, or preparation that contains any quantity of tianeptine including its salts,
5 isomers and salts of isomers unless specifically excepted, whenever the existence of these salts, isomers and salts of
6 isomers is possible.

SYNOPSIS

This Act bans the sale of Tianeptine in the State by identifying it as a Schedule I controlled substance. Tianeptine, also known as “gas station heroin,” is an antidepressant drug that is not approved by the FDA and is being sold as a dietary supplement in gas stations and other shops. This Act requires approval by a two-thirds vote because the statutory change will result in the expansion of an existing misdemeanor.